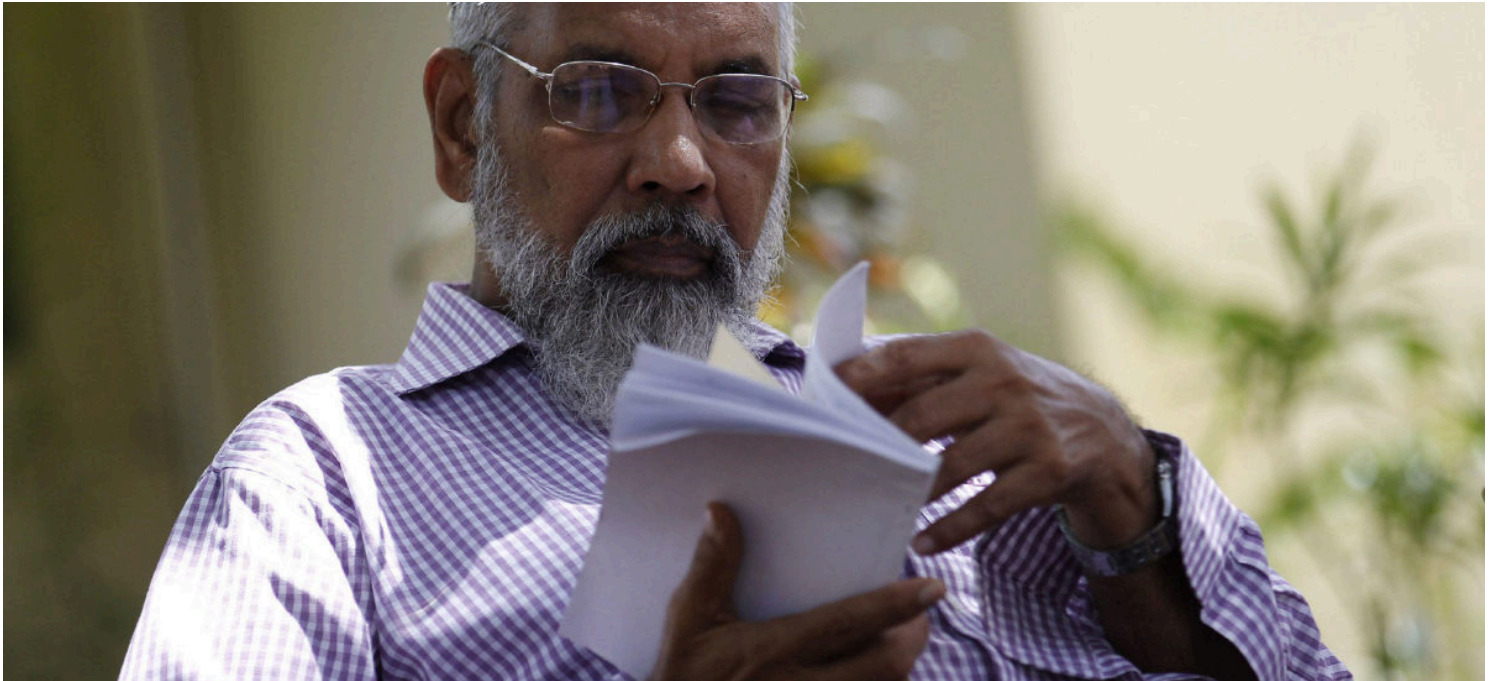




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Why I Oppose Federalism for Sri Lanka: Reply to Dr. Devanesan Nesiah

(<https://web.archive.org/web/20251228093436/https://groundviews.org/2017/09/29/why-i-oppose-federalism-for-sri-lanka-reply-to-dr-devanesan-nesiah/>)

DR DAYAN JAYATILLEKA ([HTTPS://WEB.ARCHIVE.ORG/WEB/20251228093436/HTTPS://GROUNDVIEWS.ORG/AUTHOR/DR-DAYAN-JAYATILLEKA/](https://web.archive.org/web/20251228093436/https://groundviews.org/author/dr-dayan-jayatilleka/))

on 09/29/2017



Featured image courtesy Dinuka Liyanawatta/Reuters

I thank Dr. Devanesan Nesiah for his constructive engagement (Constitutional choices and Tamil Politics-1 Sept 28th 2017 (<https://web.archive.org/web/20251228093436/https://groundviews.org/2017/09/27/constitutional-choices-and-tamil-politics-part-1/>)) with the ideas I had recently expressed at this crossroads of contemporary Sri

Lankan history. I am gratified by his generosity when he says that “overall, I am largely in agreement with what Dayan has written.” I also appreciate the absence of dogmatism, prejudice and vehemence that many Sinhala ‘political fundamentalists’ have shown towards my ideas on the subject in other forums. I write to clarify and correct the views that Dr. Nesiah has attributed to me as well as to engage critically with some of the ideas he has elaborated in response to mine.

I must, at the outset, make clear what the basis of my approach is. It is that of a political scientist. I draw inspiration from Aristotle’s attempt to identify the great many and diverse political systems and Constitutions of the Greek city states, and to classify them. I similarly seek inspiration from Montesquieu’s point that a great variety of factors go into form the political systems of various states and different clusters of factors give rise to different outcomes. In short my point is that one size does not fit all, and that a Constitution cannot but reflect the specific circumstances and conditions of the place involved. These factors include civilizational and above all geopolitical factors.

Dr. Nesiah is correct when he says that “Dayan does not, as so many others do, mindlessly reject the need for a new Constitution or any radical amendment to the existing one. Instead, he prescribes limits to what could be included in such a constitution or an amendment.”

While it is true that I am opposed to a wholly new constitution, especially at this time and under this dispensation, it is not mindlessly so, and it with stated reasons. I have no problems with “radical amendments” on subjects that warrant and permit radicalism—such as issues of discrimination, and rights, especially socioeconomic rights. But on Sri Lanka’s ethno-national issue, I strenuously champion a moderate and pragmatic rather than a radical amendment.

In this sense I am not a conservative who abhors change nor a neoconservative who wishes to roll back existing reforms such as the 13th amendment, nor yet a neoliberal who is of the view that “anything goes” by way of change or reform; that any change is better than none. Mine is a liberal (or social democratic) Realist view that advocates consensual, sustainable, gradualist and incremental change on sensitive and emotive issues which have the potential to set off a destabilizing chain reaction in a post-conflict context.

Dr. Nesiah accurately says that “Instead, he [Dayan] prescribes limits to what could be included in such a constitution or an amendment. These limits are based on his identification of what he describes as three types of Sri Lankan Separatists” and goes on to assert that “It is such identification that I have problems with.”

Dr. Nesiah thus rationally demarcates the area of our disagreement. I must say yet again what a refreshing change it is to be able to disagree on shared ground, rather than have a dialogue of the deaf. Where we disagree is in his understanding of my position, and even where he does understand it, his criticisms of my position. He writes: “Though he does not say so explicitly, he seems to concede that every form of internal self-determination or regional autonomy could conceivably be a step towards a totally different outcome, viz. external self-determination or secession.”

As Dr. Nesiah correctly notes, I do not explicitly say what he ascribes to me. That is with reason, and the reason is that this is not exactly what I mean or intend. If it were, he can rest assured I would have said so explicitly. I do not “concede that every form of internal self-determination or regional autonomy could conceivably be a step

towards a totally different outcome, viz. external self-determination or secession.”

In the first place I draw a huge distinction between “internal self-determination” and “regional autonomy”. Therefore what I say about regional autonomy is by no means what I say about internal self-determination. I am for regional autonomy within a unitary state. This has a long lineage in leftist discourse and exists in practice in many states which remain unitary or are silent on self-definition. I am not against internal self-determination in each and every case, but I do not have the same caution about regional autonomy that I have about internal self-determination.

I must draw attention to the fact that internal self-determination is far from inextricably linked with either regional autonomy or federalism. India’s federalism for instance, does not countenance any recognition of self-determination be it external or internal. China’s ethnic regional autonomy will not hear of it either. This because these states know (India, from bitter experience) that once “self-determination” and/or “nation” enter the discourse at sub-national/sub-state level, they can prove elastic to the point of invoking referenda and justifying separation.

I must further clarify that I am not against federalism in each and every case. I am not an anti-federal fundamentalist or a fundamentalist of any sort. However, I oppose it in the Sri Lankan case for explicitly geopolitical reasons.

Bolivia defines itself as “pluri-national”, which I applaud, and Ethiopia recognizes the right of self-determination of its component regions, which I have no political or conceptual problem with, but they do not have either Sri Lanka’s civilizational specificities or geopolitical vulnerabilities. It was Prof Samuel Huntington who listed this island as a site through which one of his famous “fault lines” ran: that between the Indic/Hindu and the Buddhist civilizational zones. Therefore I would oppose any definitional usages which open the door or a window to national self-determination in the Sri Lankan Constitution. That would constitute a window of unacceptable geopolitical and civilizational vulnerability for this island.

Dr. Nesiiah sees federalism as a prophylactic against secessionism always and everywhere. I have no federal-phobia, but am aware as a student of comparative global politics that there are more countries which have opted for unitary systems (many with degrees of local autonomy) than those which have opted for federalism; that there are many instances that federalism has kept countries together or brought them together, and some which have not stayed together despite federalism, and still others where ethno-federalism (federalism along ethnic lines) has actually contributed to break up of states or tempted regions into attempting independence. Thus as a political scientist, I am neither an anti-federal fundamentalist as most Sinhalese are nor a pro-federal fundamentalist as most Tamils are.

Canadian federalism admits of internal self-determination as in the case of Quebec. However, French speaking Quebec is separated from the Atlantic Ocean from France. Sri Lanka’s Tamil speaking North and East are not separated by more than a strip of water from Tamil Nadu—and Tamil Nadu will always be an important shareholder of the neighboring Leviathan, India.

Dr. Nesiah counts on the danger of India of secessionism in the North of Sri Lanka, and therefore argues that India will be a permanent firewall between federalism and secessionism. From the perspective of geopolitical realism, that is not something one can count on and base the structure of the Sri Lankan state on. The Indian assisted emergence of Bangladesh did not trigger any pan-Bengali separatism, so there is no guarantee that Tamil secessionism will always be perceived as a danger to India itself. There is also the Cyprus option, or the Crimea option, which would co-opt Tamil secessionism in such a manner as to pre-empt any threat to India.

Realism does not count on the goodwill or perceptions of other states; factors which are variables. Realism bases state policy on potential threats and the capacities – not the current intentions—of others. A Realist policy regards as fundamental “who we are, what we are and where we are” as my late father Mervyn de Silva used to remind us. Sri Lanka must choose a model of state that tilts towards a centripetal rather than risks a centrifugal outcome. Of course, too tight a degree of control will trigger centrifugalism just as it can be triggered by too loose a tie with the center. My view is that a unitary state with a generous measure of provincial autonomy will provide the right degree of centripetalism and thereby narrow the risks of centrifugalism.

Dr. Nesiah may suspect me of a sleight of hand here, because I use “provincial autonomy” in my recommendation while claiming to stand for regional autonomy. Here my argument returns to the geopolitical factor, both external and domestic. An illustrative digression, if I may. Marx and Engels bitterly opposed federalism, which was one of the reasons they fought against Mikhail Bakunin and the Anarchists who advocated it. However, after Marx’s death, Engels made a solitary exception and that too with an important caveat. Intervening in the debate over the program of the German Social Democrats he conceded that federalism may be a means to unify Germany, but insisted that if that were to be adopted, then it would have to come with the rider that Prussia should be divided into two, so that that a single region would not have too big a share in a federally unified Germany. My argument is similar. In a unitary Sri Lanka with authentic autonomy, a merged North and East which would comprise a linguistic region, would have a disproportionate amount of land on this small island. Therefore, my *general* support for regional autonomy translates into support for provincial autonomy in the *specific* case of Sri Lanka.

To see Dr Nesiah’s article on “Constitutional Choice and Tamil politics” click here

(<https://web.archive.org/web/20251228093436/https://groundviews.org/2017/09/27/constitutional-choices-and-tamil-politics-part-1/>).

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